

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on September 15, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On September 15, 2023, a complaint was received by this Agency submitted by Ms. A.A.A. (hereinafter, the complainant) against FORUS DEPORTE Y OCIO, S.L. (hereinafter, the respondent) for not having duly attended to her right of access to her personal data.

The complainant states that on July 24, 2023, she requested access to her data from the respondent entity via email sent to ***EMAIL.1 and ***EMAIL.2, without receiving a response. Therefore, on July 31, 2023, she reiterated her request, receiving a response on August 4, 2023, in which she was informed that, since the email address from which the request was made was not included in their database, she should send her ID to verify her identity. The complainant states that the email address from which she made her request is known to the respondent since she has been receiving various communications from the respondent sent to that email address for a year (a matter she brought to the attention of the respondent).

On August 11, 2023, she sent a new email requesting attention to her right of access, receiving a response on August 18, 2023, where the respondent indicates that her access request is being attended to, although it is attended to incompletely as, among other things, they do not provide a reference to the data processed by the respondent, nor do they mention the treatments carried out. For this reason, the complainant again requested, on August 18, 2023, via email, that her right of access be fully attended to, without having received a response from the respondent up to the time of filing this complaint.

On the other hand, the complainant points out that to access the respondent's center located in ***LOCALIDAD.1 and named (...), users are required to provide a copy of their ID, without being informed at the time of data collection, in the manner established in Article 13 of the GDPR.

She provides copies of her requests and received emails.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent replied that they received the complainant's request and that the right was first responded to on August 4, 2023, requesting more information, and was fully addressed on August 11, 2023. They provide a copy of the document with the formal response to the exercise of the right. In this response, it can be verified that specific personal data is not provided, but only the category of the personal data of the complainant that has been processed is specified without providing the specific personal data.

Subsequently, they provided the complainant with a copy of her ID via email on November 22, 2023, a copy of which is attached.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the complainant's claims to be considered satisfied because, in the access, they did not provide the complainant with her specific personal data that they process but only indicated the categories of data. Consequently, on December 15, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing. The aforementioned agreement granted the respondent a hearing period, so that within ten working days, they could present any arguments they deemed appropriate.

The respondent indicates that the complainant exercised her right of access before FORUS for the first time on July 24, 2023, and only a week later, that is, on July 31, she communicated again with the responsible party insisting on her right of access.

“FORUS, as the data controller, and in accordance with Article 12(6) of the GDPR and the GDPR Guide for Data Controllers of the AEPD, requested more information (additional information) from the complainant in order to adequately identify the user in their databases, and thus be able to correctly exercise her right of access. However, the interested party responded refusing to provide the requested information indicating that she had already provided it at the time of her registration (in 2021). We must point out, in this regard, that FORUS was authorized to request additional information from the interested party in accordance with the provisions of the GDPR.”

The respondent indicates that, on “(...) August 18, 2023, still within the one-month period following the receipt of the request from the interested party exercising her right of access, FORUS responded, in accordance with Article 15 of the GDPR, indicating the name of the data controller, the legal basis, the source of the data, the non-transfer of the processed data, the possibility of exercising her rights.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/11

in matters of data protection, and the option to file a complaint with the AEPD.

On the same day that FORUS complied with the right of access of the interested party, she claimed that the response was incomplete as it did not indicate in a personalized manner which personal data FORUS was processing about her. In this regard, FORUS informed the complainant that it was processing her identifying data (her name, surname, ID number, date of birth), her address, her contact details (her email and phone number), and her signature.

(...) That, in the opinion of the responding party, it did not breach the information duty established in Article 13 of the GDPR, since, as stated, FORUS informed the complainant that the personal data it processed about her consisted of her name, surname, ID number, date of birth, address, email, and signature.

- That, given that the aforementioned personal attributes can only be understood in one sense (since there cannot be two dates of birth, nor two names), my client understood in good faith that the information provided was sufficient for the complainant to "know" the data that FORUS processed about her.

Please note that FORUS did not process, nor does it process, any other personal data of its clients related to habits, health data in general, or others of the same nature.

- That, in other words, we understand that FORUS did attend to the user's right of access in accordance with Article 15 of the GDPR, since, although the data communicated to the user was not fully personalized, as it referred to her own identifying data (that is, her name, surname, and ID number), her date of birth, her address, and her contact details (her email and phone number), and given that these are the data that the complainant had communicated to FORUS at the time of registering for its services, no further specification was necessary due to the univocal and direct nature of such data. We are not dealing with data that can have multiple meanings, but rather the meaning or attribute can only be one, for obvious reasons."

FOURTH: After examining the document submitted by the responding party, it is forwarded to the complainant, so that, within ten working days, she may make any allegations she deems appropriate, failing to make allegations within the established period.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
4/11

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and proof of having provided the complainant with the appropriate response.

The result of this forwarding did not satisfy the claims of the complainant. Consequently, on December 15, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission initiates the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the agreement of admission was notified to the complainant. After this period, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to rectify any infringement of the GDPR, including "ordering the controller or processor to...

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
5/11

they address the requests for the exercise of the rights of the data subject under this Regulation.

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to fulfill such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of access

According to the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

Conclusion

The rights procedure is initiated as a consequence of the lack of attention to any of the rights regulated in the data protection regulations. Therefore, in this case, only the facts related to the exercise of these rights will be analyzed and evaluated, excluding the rest of the issues raised by the parties.

In this case, and taking into account the provisions of the first paragraph of this Legal Basis, it has been established that the complaining party exercised their right of access against the responding party and that the latter, after requesting the ID from the complainant in order to adequately identify the user in its databases, responded by providing the categories of data in which the complainant's data was stored, without specifying or detailing what those data are.

Article 12.6 of the GDPR states that:

"6. Without prejudice to the provisions of Article 11, when the data controller has reasonable doubts concerning the identity of the natural person making the request referred to in Articles 15 to 21, it may request the additional information necessary to confirm the identity of the data subject."

Furthermore, Recital 64 of the same legal text states that

Recital (64) The data controller must use all reasonable measures to verify the identity of data subjects requesting access, particularly in the context of online services and online identifiers. The controller must not retain personal data for the sole purpose of being able to respond to potential requests.

The possibility of requesting the DNI, or another identifying document, is established in the data protection regulations if the data controller cannot confirm the identity of the individual exercising their rights with the data at their disposal.

Notwithstanding the above, in the present case, the claimant has indicated that the email address from which they exercised their right of access was known to the respondent, as they have been receiving various communications from the respondent sent to that email address for a year.

Therefore, when the respondent received the exercise of rights through that system, they could verify that the sender's address is that of the claimant, and consequently, the submission of a photocopy of the DNI is no longer necessary, and they should have provided the requested access.

The Guidelines 1/2022, in their version of March 28, 2023, from the European Data Protection Board, regarding the rights of data subjects - right of access, state that

“3. Under the GDPR, the right of access consists of three components, namely, the confirmation of whether or not personal data is being processed, access to the data, and information about the processing itself. The data subject can also obtain a copy of the personal data being processed, while this possibility is not an additional right of the data subject, but rather the modality of providing access to the data. Therefore, the right of access can be understood both as the possibility for the data subject to ask the data controller whether personal data concerning them is being processed, and as the possibility to access and verify this data. The data controller shall provide the data subject, based on their request, with the information included within the scope of Article 15, paragraphs 1 and 2, of the GDPR.

(...)

16.1.1.

Definition of the content of the right of access

17. Article 15, paragraphs 1 and 2, contains the following three aspects: first, the confirmation of whether the personal data of the requesting individual is being processed; if so, second, access to that data; and third, information about the processing. These can be considered as three different components that together constitute the right of access.

17.1.1.1. Confirmation of whether or not personal data is being processed

18. When making a request for access to personal data, the first thing that data subjects must know is whether the data controller is processing the data concerning them. Consequently, this information constitutes the first component of the right of access under Article 15, paragraph 1. When the data controller is not processing data

related personal data concerning the data subject requesting access, the information provided would be limited to confirming that no personal data related to the data subject is being processed. When the data controller processes data relating to the requesting person, the data controller must confirm this fact to that person. This confirmation may be communicated separately or may be included as part of the information regarding the personal data being processed (see below).

2.2.1.2 Access to personal data subject to processing

19. Access to personal data is the second component of the right of access under Article 15, paragraph 1, and constitutes the core of this right. It refers to the notion of personal data as defined in Article 4, paragraph 1, of the GDPR. Apart from basic personal data, such as name and address, an unlimited variety of data may be included in this definition, as long as it falls within the material scope of the GDPR, especially regarding how it is processed (Article 2 of the GDPR). Access to personal

data means access to the actual personal data, not just a general description of the data or a mere reference to the categories of personal data processed by the data controller. If no limits or restrictions apply, data subjects have the right to access all data processed concerning them, or parts of the data, depending on the scope of the request (see sec. 2.3.1). The obligation to provide access to the data does not depend on the type or source of such data. It applies in full even in cases where the requesting person initially provided the data to the data controller, as its purpose is to inform the data subject about the actual processing of such data by the data controller. The scope of personal data under Article 15 is explained in detail in sec. 4.1 and 4.2.

(...)

2.3 General principles of the right of access

34. When data subjects submit a request for access to their data, in principle, the information referred to in Article 15 of the GDPR must always be provided in full. Consequently, when the data controller processes data relating to the data subject, the data controller will provide all the information referred to in Article 15, paragraph 1, and, where applicable, the information referred to in Article 15, paragraph 2. The data controller must take appropriate measures to ensure that the information is complete, accurate, and up to date, as close as possible to the state of data processing at the time of receiving the request.

2.3.1 Completeness of the information

35. Data subjects have the right to obtain, with the exceptions mentioned below, the complete disclosure of all data relating to them (for more details on the scope, see section 4.2). Unless the data subject expressly requests otherwise, the request to exercise the right of access will be understood in general terms, encompassing all personal data relating to the data subject. Limiting access to part of the information may be considered in the following cases:

a) The data subject has explicitly limited the request to a subset. To avoid providing incomplete information, the data controller may only consider this limitation of the data subject's request if it can be sure that this interpretation corresponds to the will of the data subject (for more details, see section 3.1.1, para. 51). In principle, the data subject will not have to repeat the request for the transmission of all data that the data subject has the right to obtain.

b) (...)

42.1.1. Analysis of the content of the request

43. This issue can be evaluated more specifically by asking the following questions.

a) Does the request refer to personal data?

44. Under the GDPR, the scope of the request will only cover personal data. Therefore, any request for information on other matters, including general information about the data controller, its business models, or its processing activities unrelated to personal data, will not be considered a request made in accordance with Article 15 of the GDPR. Furthermore, a request for information about anonymous data or data that does not concern the requesting person or the person on whose behalf the authorized person made the request will not fall within the scope of the right of access. This question will be analyzed in more detail in section 4.

45. Unlike anonymous data (which is not personal data), pseudonymous data, which could be attributed to a natural person through the use of additional information, is personal data. Therefore, pseudonymous data that can be linked to a data subject, for example, when the data subject provides the respective identifier that allows their identification, or when the data controller can connect the data to the requesting person by their own means, must be considered within the scope of the request.

(...)

e) Do the data subjects wish to access all or part of the information processed about them?

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

10/11

51. Furthermore, the data controller must evaluate whether the requests made by the applicants refer to all or part of the information processed about them. Any limitation of the scope of a request to a

specific provision of Article 15 of the GDPR, made by the data subjects, must be clear and unequivocal. For example, if the data subjects literally request "information about the data processed concerning them," the data controller must assume that the data subjects intend to fully exercise their right under Article 15, paragraphs 1 to 2, of the GDPR. Such a request should not be interpreted as the data subjects wishing to receive only the categories of personal data being processed and waiving their right to receive the information listed in Article 15, paragraph 1, letters a) to h). This would be different, for example, when the data subjects wish to have access to the source or origin of the specified personal data or the specified retention period. In such a case, the data controller may limit their response to the specific information requested.

As a consequence of all the above, it has been established that the respondent has not duly attended to the requested right of access by failing to provide the specific and concrete data of the claimant, and therefore, the claim that led to this procedure is upheld.

In view of the cited provisions and others of general application, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO UPHOLD the claim made by Ms. A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge FORUS DEPORTE Y OCIO, S.L. with NIF B86329331, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the requested right or a reasoned denial indicating the reasons why the request cannot be attended to, in accordance with the provisions established in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Ms. A.A.A. and to FORUS DEPORTE Y OCIO, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

11/11

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823
Mar España Martí
Director of the Spanish Data Protection Agency
C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es